

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X

ROXXANNA CID AND AARON CANALES

Plaintiffs,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P. O. PIECHOWICZ,
SHIELD NO. 457957, 44th POLICE PRECINCT, IN HIS INDIVIDUAL,
AND OFFICIAL CAPACITY AND P. O. MONTOYA, IN HIS INDIVIDUAL
AND OFFICIAL CAPACITY.

Defendants.

SUMMONS

Index No.

Date Index No. Purchased

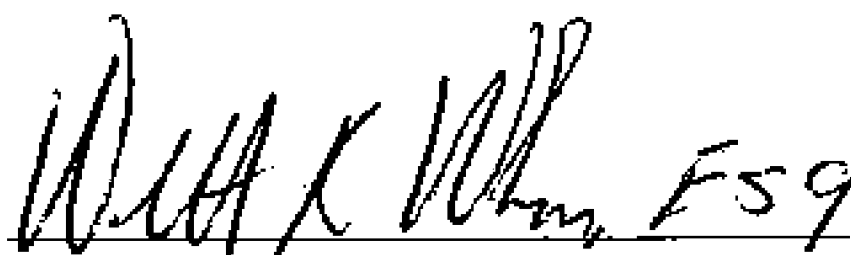
5/31/2022

**Plaintiffs Designates Bronx
County as the Place of Trial
Pursuant to C.P.L.R. 503
Jury Trial Demanded**

You are hereby summoned to answer the Complaint in this action and to serve a copy

of your answer or if the Complaint is not served with this summons, to serve a notice of appearance
on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the
day of service (or within 30 days after the service is complete if this summons is not personally
delivered to you within the State of New York) and in case of your failure to appear or answer,
judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 31, 2022
Bronx, New York

By  FS9
Welton K. Wisham, Esq.
The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office

Defendants Address:

The New York City Police Department
One Police Plaza.
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX **X**

ROXXANNA CID AND AARON CANALES

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X

Index No.
ECF
COMPLAINT

**Plaintiffs Designates Bronx
County as the Place of Trial
Jury Trial Demanded**

Plaintiffs, Roxxanna Cid and Aaron Canales by their attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for their Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, Police officers Picchowicz and Montoya, as New York City Police Officers, knowingly and intentionally arrested, detained and held Plaintiffs in custody for six hours without probable cause. The Defendant police officers failed to submit an accusatory instrument to the Bronx Criminal Court causing all charges to be favorably dismissed against the Plaintiffs.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the unreasonable seizure, arrest, and imprisonment of the Plaintiffs on June 12, 2021.

2. On June 12, 2021, Plaintiffs were driving on the George Washington Bridge when the vehicle driven by Roxxanna Cid was rear ended by another driver who assaulted Ms. Cid as she

complained about the drivers' negligence driving which caused significant damaged to her motor vehicle.

3. Ms. Cid was dragged from her vehicle and punched in her face and body without provocation.

4. Plaintiffs called 911 for police assistance and informed the arriving officers of what had occurred and demanded the officers arrest the driver who got out of his vehicle and assaulted Ms. Cid.

5. Instead of arresting the driver who assaulted the Plaintiff, the officers arrested both Roxxanna Cid and Aaron Canales.

6. The Plaintiffs were driven by the Defendant officers to the 44th police precinct located at 2 East 169th Street, Bronx, New York and held for approximately six hours.

7. Plaintiffs were charged with disorderly conduct.

8. **The charges against the Plaintiffs were favorably dismissed on July 13, 2021, because officer Piechowicz failed to draft an accusatory instrument. (Emphasis added)**

9. That officers Piechowicz and Montoya knowingly and willfully engaged in misconduct by charging Plaintiffs with crime for which the officers knew the Plaintiffs had not in fact committed.

10. This action is brought pursuant to 42 U.S Section 1983, and under New York State Law to redress Plaintiffs' rights under the Fourth Amendment and Fourteenth Amendments to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York for False Arrest, False Imprisonment, Unreasonable Search and Seizure and the injuries suffered by the Plaintiffs therein.

11. This action is also brought against the City of New York for the negligent acts of the Respondent police officers in accordance with the Common Law in the State of New York pursuant to Respondent Superior.

JURISDICTION AND VENUE

12. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, County of the Bronx.

13. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983 and under Article I Section 12 of the Constitution of the State of New York.

14. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section, 1983.

15. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

16. Plaintiff, Roxxanna Cid at all relevant times herein was a resident of the State of New Jersey. Ms. Cid is a citizen of the United States.

17. Plaintiff Aaron Canales, at all times herein was a resident of the State of New Jersey. Mr. Canales is a citizen of the United States.

18. The Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

19. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendants, police officers, Picchowicz and Montoya.

20. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City Police Officers obey the laws of the State of New York and the laws of the Constitution of the United States.

21. That at all relevant times Defendants were acting within the scope of their employment as police officers of the City of New York and under the color of state law.

22. At all times relevant herein the Defendants, as police officers of the City of New York, were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of state law.

JURY DEMAND

23. Plaintiff's demands trial by jury.

NOTICE OF CLAIM

24. Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim on or about September 9, 2021, well within ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

25. On September 27, 2021, the Comptroller of the City of New York acknowledge receipt of the Plaintiffs' Notice of Claim by assigning Claim number 2021PI025615.

26. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

27. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

28. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

29. That the Plaintiffs have satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

30. That by reason of the foregoing, Plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

31. On June 22, 2021, at approximately 12:00pm, Roxxanna Cid was driving a 2009 Honda Accord bearing license plate number WE 859E. Aaron Canales was a passenger seated in the front passenger seat of the vehicle.

32. Ms. Cid was driving eastbound on the George Washington Bridge near toll booth 14, going towards New York City.

33. Ms. Cid was traveling in the left lane as she passed the toll booth and noticed a truck bearing license plate no. 3160995 alongside her vehicle in the right-hand lane that had stopped in front of the toll booth.

34. The truck was approximately fifty (50) feet long and was traveling eastbound into New York alongside the Claimant's vehicle.

35. As Ms. Cid began to make a right turn, she signal to alert drivers that she was about to change directions.

36. That before Plaintiff could turn, the driver of the truck swerved his truck into the lane immediately next to Ms. Cid's vehicle.

37. The truck ran directly into the right side of Plaintiff's vehicle causing substantial damage to the Honda Accord.

38. Ms. Cid's vehicle was pushed against a cement barrier by the driver of the truck.

39. The man driving the truck became angry with Mr. Canales when he saw Mr. Canales recording the truck driver.

40. The truck driver failed to slow down and continued to drive his truck onto Ms. Cid's vehicle.

41. Mr. Canales looked out his window and began to yell at the truck driver that he had ran into his vehicle.

42. The driver of the truck stopped his vehicle and got out of his truck and ran towards the Plaintiffs who were sitting inside Plaintiff's motor vehicle was stopped alongside the highway on the Cross Bronx Expressway near University Ave, Bronx, New York.

43. The truck driver, without provocation, reached into Ms. Cid's vehicle and attempted to open the door of Ms. Cid's vehicle.

44. Mr. Canales recorded the entire episode.

45. The truck driver attempted to drag Ms. Cid out of her vehicle by grabbing Ms. Cid around her shoulders.

46. The truck driver, in a rage, dragged Ms. Cid out of her vehicle.

47. The truck driver hit Ms. Cid in her mouth with his hands and continued to yell and curse the Plaintiffs.

48. Plaintiffs called 911 for police assistance.

49. Several members of the New York City Police Department arrived including officers Piechowicz and Montoya.

50. Mr. Canales attempted to explain to the officers what had occurred and tried to show the officers the videos supporting the Plaintiffs' version of the events that had taken place and the assault by the truckdriver.

51. The officers spoke to the driver of the truck and then approached Ms. Cid.

52. Ms. Cid informed the officers that she had been assaulted by the truck driver.

53. The Plaintiffs showed the officers the video showing that the truck had in fact rammed his truck directly into Ms. Cid's motor vehicle.

54. Plaintiffs also showed the officers how the truck driver opened Ms. Cid's car door and grabbed her out of her vehicle.

55. Ms. Cid showed the officers the injuries to her lip inflicted by the truck driver when the driver punched Ms. Cid in her face.

56. The officers asked Ms. Cid if she needed medical attention.

57. Ms. Cid informed the officers that she was injured and that she did indeed want medical attention.

58. Paramedics were called and arrived at the scene.

59. Ms. Cid and Mr. Canales informed the officers that they wanted to press charges against the driver of the truck for assaulting Ms. Cid and threatening Mr. Canales.

60. The officers informed the Plaintiffs that if they wanted to press charges against the truck driver, the officers would have to arrest the Plaintiffs as well.

61. As the paramedics were aiding Ms. Cid, one of the Defendant officers informed the paramedic that an officer will follow the paramedic to the hospital because Ms. Cid is getting arrested afterwards.

62. The Plaintiffs did not want to get arrested and informed the officers that they were not pressing charges against the truckdriver because the officers had threaten to arrest the Plaintiffs if they persisted in demanding the arrest of the truckdriver.

63. Officer Montoya ,however, ignored the Plaintiffs' change of mind to press charges against the truck driver, and approached Ms. Cid and handcuffed both her hands behind her back.

64. Mr. Canales recorded the officer's unlawful arrest and unjustifiable arrest of Ms. Cid.

65. The paramedics had not completed their examination of Ms. Cid and told the officers to wait.

66. Mr. Canales told the officers to wait and allow the paramedics to finish rendering assistance to Ms. Cid who had significant injures resulting from the assault inflicted upon her by the truck driver.

67. Officer Montoya became upset, and told another police officer to arrest Plaintiff Canales.

68. The officers told Arron to turn around and placed his hands behind his back as the Defendants handcuffed Mr. Canales hands behind his back.

69. Ms. Cid was placed under arrest by officer Piechowicz.

70. The Plaintiffs were then driven to the 44th police precinct where they remained in custody for approximately five hours.

71. Officer Piechowicz charged the Plaintiffs with disorderly conduct and gave the Claimants an appearance ticket to appear in Bronx Criminal Court. In August 20, 2021.

72. As Mr. Canales was being driven to the police precinct he asked the officers why he was being arrested.

73. The officers said that he would find out later at the precinct.

74. Ms. Cid was handcuffed to a bench at the precinct and Mr. Canales was placed in a cell.

75. One of the officers at the precinct informed Mr. Canales that he would be allowed to leave soon and that **he should never have been arrested**. (Emphasis)

76. The officer told Mr. Canales that he would be given a ticket but **that if he fought the charges the charges would be dismissed**. (Emphasis)

77. On July 13, 2021, the Plaintiffs received notification from the Bronx Criminal Court informing the Plaintiffs that **the case against them had been dismissed because the NYPD had failed to filed an legally acceptable accusatory instrument**. (Emphasis added)

78. **Summons No's 4448322671 and 4448322685** were deemed null and void prompting this action against the Defendants.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST POLICE OFFICERS
PIECHOWICZ AND MONTOYA FOR FALSE ARREST AND FALSE
IMPRISONMENT PURSUANT TO 42 U.S.C. SECTION 1983.**

79. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 78", with the same force and effect as though more fully set forth at length herein.

80. That at all time herein mentioned Defendants police officers Piechowicz and Montoya directly participated and caused Plaintiff's injuries and false arrest, detention, imprisonment and

deprivation of liberty by arresting the Plaintiffs without probable cause to have reasonably believed Plaintiffs had engaged in disorderly conduct.

81. The Defendant police officer knowingly commenced a criminal prosecution against Plaintiffs for which the officers knew such charges were unwarranted.

82. That officers Piechowicz and Montoya's conduct as set forth above was wanton and malicious.

83. That the Defendant police officers met with each other and conferred false, misleading information against Plaintiffs Cid and Canales and subjected Plaintiffs to the deprivation of liberty without probable cause.

84. Plaintiffs were held against their will by the Defendants, unable to move and unreasonably seized and arrested by the Defendant police officers.

85. Plaintiffs were conscious of their arrest, detention and unlawful seizure and did not consent to their confinement.

86. Plaintiffs were arrested, seized and held in custody without probable cause.

87. Defendants, Piechowicz and Montoya, as police officers of the City of New York, acted in substantial abuse of their power as New York City Police Officers and acted beyond their federal and state authority.

88. The officers knowingly and willfully prepared false police reports accusing the Plaintiffs of disorderly conduct for which the officers knew Plaintiff had not committed and intentionally deprived the Plaintiffs of their right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

89. Defendants forcibly handcuffed, searched, seized, assaulted, and subjected Plaintiffs to undue humiliation, personal degradation, abuse, emotional distress, trauma, and embarrassment.

90. As a direct and proximate result of Officers' Picchowicz and Montoya misconduct and abuse of authority described above, Plaintiffs Roxxanna Cid and Aaron Canales suffered emotional distress from their unlawful arrest, search and seizure as set forth herein for which the Plaintiffs now seek to be compensated pursuant to 42 U.S.C. Section 1983, for an amount which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS
PIECHOWICZ AND MONTOYA FOR VIOLATING PLAINTIFFS' RIGHT TO BE
FREE FROM UNREASONABLE SEARCH AND SEIZURE PURSUANT TO 42 U.S.
CODE SECTION 1983.**

91. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "90." with the same force and effect as though more fully set forth at length herein.

92. Plaintiffs in this instant action, commenced this lawsuit against the Defendants pursuant to 42 U.S.C Section 1983 which states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress... **42 U.S.C Section 1983,**

93. Plaintiffs' federal claims are brought pursuant to the Fourth Amendment to the Constitution of the United States for the Defendants unreasonable search and seizure of Plaintiffs, Roxxanna Cid and Aaron Canales.

94. Defendants, Piechowicz and Montoya knowing and unreasonably violated Plaintiffs' Constitutional rights under the Fourth Amendment by refusing to review the video recording by Mr. Canales which clearly depicted the male truck driver attacking Ms. Cid and punching the Plaintiff in her face.

95. That the Defendants threatened to arrests the Plaintiffs without justification when the Plaintiffs informed the officers that they wanted the truckdriver arrested for assaulting Ms. Cid.

96. The officers informed the Plaintiffs that if the Plaintiff's wanted the driver arrested that the officers would also arrest the Plaintiffs.

97. The officers knew they lacked the requisite probable cause for arresting the Plaintiffs.

98. That the manner in which the Plaintiffs were seized and held in custody was unreasonable under the circumstances as set forth herein.

99. That the Defendant officers, Piechowicz and Montoya conspired together to violate Plaintiffs' rights to be free from the unreasonable search, seizure and deprivation of liberty by without probable cause and without due process of law.

100. That in the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard to Plaintiffs' Constitutional rights.

101. That Ms. Cid and Mr. Canales were deprived of their rights, privileges and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article 1, Section 12 of the Constitution of the State of New York.

102. That the Defendant police officers, acting in their individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated Plaintiffs' rights, privileges, and immunities thereof.

103. As a direct and proximate result of the conspiracy between the Defendant officers, Plaintiffs, Roxxanna Cid and Aaron Canales were unreasonably searched, seized, and falsely imprisoned in violation of Plaintiffs' rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

104. By reason of the foregoing, Plaintiffs were intentionally confined without privilege and without probable by the Defendant police officers, Corey Simpson and Jane Doe.

105. As a consequence thereof, Plaintiffs, Cid and Canales have been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO 42 U.S.C. SECTION 1983, FOR FAILURE TO TRAIN, SUPERVISE
OR DISCIPLINE POLICE OFFICERS PIECHOWICZ AND MONTOKA.**

106. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "105", with the same force and effect as though more fully set forth at length herein

107. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiffs' Constitutional rights which caused the Plaintiffs' deprivation of liberty .

108. That the City of New York has known that its police officers repeatedly violate individuals' rights by arresting, detaining and prosecuting individuals without probable cause to

have reasonably believed that the persons for whom the officers come into contact had in fact committed a crime or offense.

109. That the City of New York and the New York City Police Department has knowingly and willfully failed to properly train, supervise and or discipline police officers in determining probable cause and has repeatedly allowed police officers to arrest individuals such as the Plaintiffs without filing a properly prepared accusatory instrument with the criminal courts.

110. The Defendants' unlawful actions were done willfully, knowingly and with specific intent to deprive Plaintiffs of their constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

111. That on July 13 2021, well before the Plaintiffs were required to appear in Bronx Criminal Court on the Summons written by officer Piechowicz. Plaintiffs received a letter from the Bronx, Criminal Court of the City of New York that ~ **As of the above reverence date, the NYPD has failed to file a legally acceptable accusatory instrument with this court. There is no need for you to return to court on the summons number referenced above**”(Emphasis added)

112. That the City of New York has known for years that officers arrests individuals without filing accusatory instruments causing such arrests to be invalidated.

113. That the failure by officers Piechowicz and Montoya to submit or to prepare legally sufficient accusatory instruments is indicative of the lack of probable cause for the Plaintiffs arrest for which the officer knew Plaintiffs had not engaged in criminal activity.

114. That the Defendant officers intended to cause Plaintiffs to suffer emotional distress by holding Plaintiffs in custody without the requisite probable cause.

**Pattern and Practice
of failing to file accusatory
instruments after arrest.**

115. The New York City Police Department has a long history of arresting individuals without probable cause and failing to file accusatory instrument subsequent to arrestees' detention.

116. On November 2, 2018, September 10, 2018, September 17, 2020 and December 9, 2020, Mr. Clarence Ross was unlawfully arrested without probable cause and held in custody for hours upon hours voicing his innocence.

117. Mr. Ross was arrested under arrests numbers, B18649496, B18641522, B20624083, B20624078, B20624080, and B20632684.

118. That Concetta Petrillo, Deputy Bureau Chief Assistant District Attorney in the Bronx District Attorney's office, informed Mr. Ross in writing, that the above arrests had been dismissed because an accusatory instrument **had not been drafted.**

119. That on April 26, 2022, Peter Lomp, Assistant District Attorney Queens County informed Mr. Victor Mendeng that his arrest on April 26, 2022 had been dismissed prior to Criminal Court arraignment.

120. That on March 21, 2022, Bevine Nembhard received written notification that her arrest on March 25, 2021, in Bronx County, under arrest number B21608937 had been dismissed because the Bronx District Attorney office declined to prosecute because " **an accusatory instrument was not drafted**".

121. That the City of New York has been aware of willful and intentional failure by New York City Police officers to draft and file written accusatory instruments supporting numerous arrests of innocent individuals such as the Plaintiffs.

122. That at all relevant times the City of New York, with deliberate indifference to the risk of injury or incarceration to innocent members of the public, failed to train, supervise or discipline police officers who knowingly and willfully failed to draft and file accusatory instruments.

123. That the custom and or practice by the New York City Police Department and its police officers who knowingly failed to train, supervise and or discipline police officers who arrest members of the public and fail to draft accusatory instruments is indicative of a widespread policy of allowing police officers to make unlawful arrests causing individuals the loss of liberty and emotional distress of being denied their right to liberty without probable cause.

124. That officers Piechowiec and Montoya arrested the Plaintiffs and failed to draft an accusatory instrument supporting the arrest and detention of Roxxanna Cid and Aaron Canales.

125. That upon information and belief, the arresting officers were not disciplined for failing to draft the required accusatory instruments.

126. That the failure to properly train, supervise and or discipline New York City Police officers including officers Piechowiec and Montoya presents a clear and present danger to the public that their constitutional rights will be infringed by an unconstitutional de facto policy of allowing police officers to deliberately arrest individuals without probable cause without drafting accusatory instruments and filing such instruments with the courts here in New York.

127. That the City of New York, has tolerated the unconstitutional policy and practice which served as the moving force behind Plaintiffs' arrest.

128. That Defendants. police officers Piechowicz and Montoya thereby directly and proximately caused the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

129. The acts complained of herein. were carried out by the Defendants police officers in their official capacity as police officers of the New York City Police Department pursuant to the customs and practices of the New York City Police Department or as a result of the City of New York's failure to train, supervise or discipline the Defendant officers.

130. The City of New York through its policy makers and agents were fully aware of and did nothing about its police officers engaging in arresting individuals such as the Plaintiffs without probable cause.

131. As a direct and proximate result of the City's failure to train, supervise or discipline the Defendant officers for failure to file written accusatory instruments constitutes deliberate indifference which caused Plaintiffs to sustained damages as set forth herein.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO THE COMMON LAW STATE OF NEW YORK UNDER
RESPONDEAT SUPERIOR**

132. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "131", with the same force and effect as though more fully set forth at length herein.

133. That the City of New York hired and supervised Defendants police officers, Piechowicz and Montoya, who participated in seizing the Plaintiffs and hold each Plaintiffs in custody without probable cause.

134. That the Defendants committed the wrongs stated herein without probable cause, and without legal justification all done while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

135. As a result, the City of New is liable for the unlawful acts of officers Piechowicz and Montoya as employees of the City of New York pursuant to the well settled and legally recognized doctrine of Respondent Superior.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDENTS POLICE OFFICERS, PIECHOWICZ AND MONTOYA FOR THE INTENTIONAL INFLICTION OF EMOTIONAL STRESS PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK.

136. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “135” with the same force and effect as though more fully set forth at length herein.

137. That the Defendant police officers, Piechowicz and Montoya, as agents, servants and/or employees of the New York City Police Department, engaged in actions for which the officers intended to inflict emotional trauma on the Plaintiffs by arresting and holding Plaintiff in custody knowing that probable cause was lacking for such action.

138. That by reason of the foregoing, Plaintiffs have suffered emotional pain and suffering, and severe emotional distress due to Defendants’ unlawful and reckless actions as more fully described herein.

139. The Defendants knowingly and intentionally and without reason, privilege or probable cause caused Plaintiffs to suffer severe emotional and physical trauma.

140. That the misconduct as more fully described above inflicted by officers Piechowiec and Montoya was extreme and outrageous conduct, and intended to cause severe emotional distress.

141. That as a direct and proximate result of the misconduct and abuse of authority by Defendant police officers Piechowiec and Montoya, Plaintiffs Roxxanna Cid and Aron Canales have been injured and has sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST OFFICERS
PIECHOWICZ AND MOTOYA FOR FALSE ARREST AND FALSE
IMPRISONMENT UNDER THE COMMON LAW OF THE STATE OF NEW
YORK.**

142. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “141” with the same force and effect as though more fully set forth herein.

143. That by reason of the foregoing, Plaintiffs were intentionally confined without privilege or probable cause to believe that the Plaintiffs had been engaged in unlawful activity on June 22, 2022.

144. That the Plaintiffs were not free to move and were conscious of their confinement and did not consent to such confinement.

145. The Defendant police officers held the Plaintiffs in custody for approximately six hours, without probable cause.

146. As a result thereof, Plaintiffs, Roxxanna Cid and Aaron Canales were falsely detained and imprisoned by officers Piechowiec and Montoya.

147. As a direct and proximate result of the above described unlawful and malicious acts of the Defendants, committed under color of their authority as police officers for the City of New

York. Plaintiffs sustained injuries and suffered emotional damages all of which resulted in the violation of Plaintiff's rights under the laws and Constitution of the United States, in particular the Fourth and Fourteenth Amendments to the Constitution of the United States and under New York State law.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS
PIECHOWICZ AND MONTOYA FOR NEGLIGENT INFLECTION OF
EMOTIONAL DISTRESS PURSUANT TO THE COMMON LAW OF THE STATE
OF NEW YORK**

148. That the Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "147" with the same force and effect as though more fully set forth at length herein

149. That police officers Piechowicz and Montoya as Police officers for the City of New York, were under a duty to engage in her duties and functions as police officers with care, respect and due diligence.

150. The officers had an explicit duty to exercise care in making arrests and filing the required police reports and accusatory instrument in the criminal courts within the City of New York in support of the arrests made by the officers and to avoid the reasonably foreseeable harm of arresting individuals such as the Plaintiffs without probable cause.

151. Defendant officers, Piechowicz and Montoya knowingly and willfully breached their duty to the Plaintiffs by falsely arresting, detaining and Plaintiffs and failing to file the required accusatory instruments with the Courts.

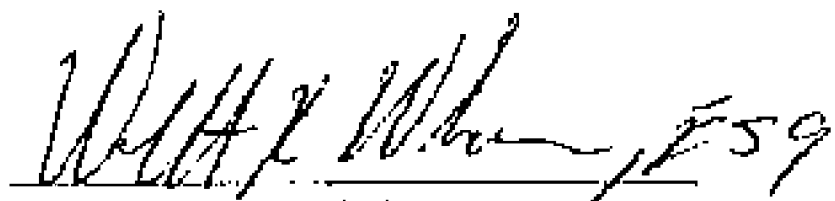
152. As a result of the negligent acts of Defendants, Piechowicz and Montoya, Plaintiffs suffered severe emotional distress, mental trauma and harm.

WHEREFORE , Plaintiffs demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiffs compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to each Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: May 31, 2022

Bronx, New York

By  Esq.
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